

Exhibit 1

SETTLEMENT AGREEMENT AND MUTUAL RELEASE

This Settlement Agreement and Mutual Release ("**Settlement Agreement**") is made and entered into effective as of May 7, 2020 (the "**Effective Date**"), between Edward Sanches ("**Ed**") and Maria Sanches ("**Maria**") (Ed and Maria are collectively referred to as the "**Sancheses**"), on the one hand, and Christopher T. Thorpe ("**Christopher**"), Janene H. Thorpe ("**Janene**"), and Sheila Schroedter ("**Sheila**") (Christopher, Janene, and Sheila are collectively referred to as the "**Thorpe Parties**"), on the other hand. The Sancheses and the Thorpe Parties are collectively referred to herein as the "**Parties**," and each are individually a "**Party**" to this Settlement Agreement.

RECITALS

WHEREAS, the Sancheses own real property located at [REDACTED] Cedar Hills, Utah 84062 (the "**Sanches Property**"), and the Thorpe Parties own real property located at [REDACTED] Cedar Hills, Utah 84062 (the "**Thorpe Property**") (the Sanches Property and the Thorpe Property are collectively referred to herein as the "**Properties**").

WHEREAS, on February 8, 2018, the Sancheses filed a Complaint in the Fourth Judicial District Court of Utah County, State of Utah, styled *Ed Sanches and Maria Sanches vs. Christopher T. Thorpe, Janene H. Thorpe, and Sheila Schroedter*, Case No. 180400305, which is currently assigned to Judge James R. Taylor (the "**Lawsuit**").

WHEREAS, on March 23, 2018, the Sancheses filed their First Amended Complaint in the Lawsuit.

WHEREAS, the Sancheses' First Amended Complaint alleges the following causes of action against the Thorpe Parties: (1) Injury to Trees—Utah Code § 78B-6-1002; (2) Trespass; (3) Intentional Infliction of Emotional Distress; (4) Breach of Contract; (5) Breach of Implied Covenant of Good Faith and Fair Dealing; (6) Civil Conspiracy; (7) Declaratory Judgment/Quiet Title/Injunctive Relief; and (8) Nuisance.

WHEREAS, the Thorpe Parties deny the allegations of the Sancheses' First Amended Complaint.

WHEREAS, in response to the Sancheses' Complaint, on March 5, 2018, the Thorpe Parties filed a Counterclaim alleging the following causes of action against the Sancheses: (1) Declaratory Judgment/Quiet Title/Injunctive Relief; (2) Trespass; (3) Invasion of Privacy—Intrusion Upon Seclusion; (4) Intentional Infliction of Emotional Distress; (5) Nuisance; and (6) Defamation.

WHEREAS, the Sancheses deny the allegations of the Thorpe Parties' Counterclaim.

WHEREAS, the Parties desire and have agreed to settle and resolve all disputes, claims, actions, rights, causes of action, suits, damages, injuries, demands, accounts, contracts, covenants, controversies, and agreements, whatsoever that now exist, whether known or unknown, arising out of, with regard to, or that are in any way connected with the the Sanches Property, the Thorpe Property, or the Lawsuit.

TERMS

NOW THEREFORE, for and in consideration of the mutual promises, covenants, warranties, and agreements as set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby settle all matters relating to the controversies above-referred, including, but not limited to, all those claims relating to the Sanches Property, the Thorpe Property, and the Lawsuit, on the following terms and conditions:

A. Performance by the Parties

1. Payment from the Thorpe Parties to the Sancheses. Within ten (10) business days after all Parties have executed this Settlement Agreement, the Thorpe Parties, or a person or entity in their behalf, shall pay to the Sancheses the total principal amount of One Hundred Thousand and 0/100 Dollars (\$100,000.00) (the “**Settlement Sum**”). The Settlement Sum shall be paid to the Sancheses by delivering a check to the Sancheses’ counsel, Eric G. Goodrich, made out to the Bennett Tueller Johnson & Deere Trust Account.

2. Boundary Line Between the Properties. As of the Effective Date, the Parties agree that the legal boundary line between the Properties is and shall be the boundary line determined by land surveyor Dennis K. Withers (the “**Boundary Line**”) in the attached **Exhibit “A,”** dated February 1, 2019 (the “**Withers Survey**”). The Parties covenant and agree that they will not dispute the Boundary Line for any purpose. Any Party who wishes to have the Boundary Line marked and/or re-marked may retain Mr. Withers to mark the Boundary Line, or may retain a different surveyor to mark the Boundary Line, provided that such surveyor marks the Boundary Line in accordance with the Withers Survey. The Thorpe Parties agree not to take any action to prohibit or discourage Mr. Withers from cooperating with the Sancheses in marking and/or re-marking the Boundary Line. The Parties agree to allow their respective surveyors, if any, access to the relevant sections of both Properties for purposes of marking the Boundary Line. The Parties agree not to move, alter, or disturb any survey markers placed by Mr. Withers or another professional surveyor to mark and/or re-mark the Boundary Line, without the express, written consent of each of the other Parties. Except, however, that if any Party chooses to construct a fence and any survey markers impede the placement of the fence on the Boundary Line, that Party may remove such survey markers, provided that the Party places the fence in the same location as any survey markers that are removed. The Parties further agree that they may remove from their respective Properties any stakes and/or markers placed in connection with any prior surveys or efforts to mark the boundary between the Properties if such stakes and/or markers do not accurately indicate the location of the Boundary Line as per the Withers Survey.

Notwithstanding anything in the Withers Survey to the contrary, the Parties covenant and agree that the shed located on the Sanches Property and the rock wall located primarily on the Thorpe Property, may remain in their current location and are not required to be moved by any of the Parties. With respect to any trees or shrubs which occupy both sides of the Boundary Line, the Parties agree that the such trees and shrubs are the property of the Sancheses and are not required to be moved; provided, however, that the Sancheses may remove any trees and shrubs they planted in their sole discretion. The Thorpe Parties may trim the portions of the Sancheses' trees and shrubs that hang over their side of the Boundary Line as they deem appropriate or desirable, but only in accordance with common industry standards generally observed by tree care professionals doing business in Utah County, Utah. No Party shall take any action which is intended, or reasonably likely, to kill, sicken, damage, poison, injure, harm, or destroy any trees, shrubs, plants, or vegetation which belong to any other Party or are otherwise located on the other Party's property other than trimming and/or pruning in accordance with common industry standards observed by tree care professionals doing business in Utah County, Utah.

3. Removal of Structures and Materials Located near the Boundary Line; Future Compliance with CC&Rs. Within (14) calendar days of the Effective Date of this Settlement Agreement, the Thorpe Parties agree to verify that their dog kennel and any other fences or markers that they have installed are on their side of the Boundary Line, and to move them off of the Sanches Property to the extent that they cross the Boundary Line. Within (14) calendar day of the Effective Date of this Settlement Agreement, the Sanches Parties agree to verify that their shed and any other fences or markers that they have installed are on their side of the Boundary Line, and to move them off of the Thorpe Property to the extent that they cross the Boundary Line. The Parties further covenant and agree to fully comply in the future with the requirements of the Declaration of Covenants, Conditions, and Restrictions for Canyon Heights at Cedar Hills Subdivision (the "**CC&Rs**") including, but not limited to, all requirements set forth in Articles V, VI, VII, VIII, and IX.

4. Protections Against Trespasses of Animals and People. The Parties agree that they will prevent and control all animals owned by them, and members of their household from trespassing onto the other Party's Property. The Parties also agree that they will take reasonable measures to prevent and control animals owned by their invitees, guests, tenants, or lessees from trespassing onto the other Party's Property. The Parties additionally agree that they will take all reasonable measures to notify and prevent their invitees, guests, tenants, and/or lessees against trespassing onto the other Party's Property.

5. Future Construction of Fence. If any of the Parties choose to construct a fence between the Properties, the constructing Party, including its contractor, agents, or employees, shall be granted a temporary license (the "**License**") to access a two foot strip of the other Party's property along the length of the Boundary Line for the purpose of digging holes, setting posts, assembling the fence, and otherwise performing those construction activities which are reasonably necessary to complete the fence but which could result in minor, incidental contact with the other Party's property. Unless otherwise agreed between the Parties, the License authorized pursuant to this paragraph shall terminate within 28 days

of the date of commencement of construction, or upon completion of the fence, whichever occurs earlier. The License granted pursuant to this paragraph shall not constitute permission by any Party to access that Party's property for any purpose other than incidental contact during construction of a fence.

6. No Harassment. The Sancheses and the Thorpe Parties shall not harass, pursue, or annoy one another, or one another's family members or guests. Prohibited harassment includes, but is not limited to, (i) directing verbal insults, obscenities, slurs, or similar language toward another Party; (ii) making non-verbal gestures toward another Party which are obscene, or which are intended to intimidate, annoy, or harass that Party, (iii) manually video or audio recording a Party (by mobile phone, video camera, or other device) without a reasonable belief by the recording Party that the Party being recorded is presently engaged in illegal conduct or conduct which would be a violation of this Settlement Agreement or any other legal or contractual provision applicable to the Parties (provided, however, that nothing in this provision is intended to prevent the Parties from using automatic surveillance cameras on their Properties in accordance with existing law); (iv) intentionally shining lights at another Party or into another Party's home other than normal lighting activities on a Party's own property; (v) placing debris, rubbish, garbage, yard waste, animal waste, or similar materials on another Party's property; (vi) calling the police on another Party without a reasonable belief that the Party who is the subject of the call has actually violated, or is about to violate, the law; (vii) engaging in any conduct that would constitute a nuisance under the Cedar Hills City Code; or (viii) otherwise engaging in any other conduct directed toward another Party intended to threaten, frighten, intimidate, or annoy that Party. The Parties shall not contact, phone, mail, email, text, or otherwise communicate in any way with one another, except as is reasonably necessary to perform the provisions of this Settlement Agreement. The Parties further covenant and agree that they will not induce or allow a third party to do what they themselves are prohibited from doing under this paragraph and each Party shall have an affirmative duty to use its best efforts to prevent third-parties, including family members, invitees, guests, tenants, and lessees, from engaging in any behavior prohibited under this paragraph. Similarly, any conduct which is prohibited from being directed toward any Party under this paragraph, shall likewise not be directed against any Party's family members or guests on that Party's property.

In the event that any communication between the Parties is necessary, it shall be directed to the Parties' respective counsel of record, as follows:

If the communication is to be directed to the Sancheses:

c/o Eric G. Goodrich
BENNETT TUELLER JOHNSON & DEERE
3165 East Millrock Drive, Suite 500
Salt Lake City, Utah 84121
egoodrich@btjd.com

If the communication is to be directed to the Thorpe Parties:

c/o Rafael A. Seminario
RICHARDS BRANDT MILLER NELSON
111 East Broadway, Suite 400
Salt Lake City, Utah 84111
rafael-seminario@rbmn.com

Any Party may appoint different counsel to receive notices under this paragraph by providing written notice of such appointment to the other Party's attorney.

7. No Disparagement. The Parties shall not make any derogatory or disparaging statements concerning any other Party or any Party's family members, friends, guests, representatives, employees, agents, affiliates, assigns, and successors. The Parties' non-disparagement obligations under this paragraph include, but are not limited to, not making disparaging communications in writing, orally, online, in social media, or in any other manner. However, nothing in this paragraph shall prohibit any Party from making any statement regarding another Party as part of any pending legal, governmental, and/or administrative proceeding.

8. Dismissal of the Lawsuit. Within seven (7) business days after payment of the Settlement Sum to the Sancheses, the Parties shall cause their attorneys to execute and file a Joint Stipulation and Motion to Dismiss, requesting that the court dismiss all claims asserted in the Lawsuit with prejudice, along with any and all other required forms in order to obtain a court order dismissing the Lawsuit with prejudice, with each of the Parties to bear their own attorneys' fees and costs.

B. Mutual Releases

1. Release of the Thorpe Parties by the Sancheses. In consideration of the promises and covenants contained in this Settlement Agreement, and other good and valuable consideration, the receipt and sufficiency of which is hereby expressly acknowledged, and upon full and final delivery of the Settlement Sum, the Sancheses hereby release and forever discharge the Thorpe Parties and their insurers (including Allstate Insurance Company and any of its affiliates), attorneys, and agents of and from any and all claims and liabilities that may exist as of the Effective Date of this Settlement Agreement, including all claims, actions, fines, damages, penalties, sanctions, liens, costs or attorneys' fees, of any nature whatsoever, whether in law or equity, contract or tort, or any other form, whether now known, unknown, asserted, unasserted, foreseen, unforeseen, contingent, actual, liquidated, or unliquidated; PROVIDED HOWEVER that nothing in this paragraph shall be construed to release or discharge the Thorpe Parties from any of the liabilities or obligations owed to the Sancheses under this Settlement Agreement; and FURTHER PROVIDED that the Sancheses do not release the claims against the Thorpe Parties that are expressly reserved in Paragraph B.3, below.

2. Release of the Sancheses by the Thorpe Parties. In consideration of the promises and covenants contained in this Settlement Agreement, and other good and valuable consideration, the receipt and sufficiency of which is hereby expressly acknowledged, the Thorpe Parties hereby release and forever discharge the Sancheses and their insurers, attorneys, and agents of and from any and all claims and liabilities that may exist as of the Effective Date of this Settlement Agreement, including all claims, actions, fines, damages, penalties, sanctions, claims for restitution, liens, costs or attorneys' fees, of any nature whatsoever, whether in law or equity, contract or tort, or any other form, whether now known, unknown, asserted, unasserted, foreseen, unforeseen, contingent, actual, liquidated, or unliquidated; PROVIDED HOWEVER that nothing in this paragraph shall be construed to release or discharge the Sancheses from any of the liabilities or obligations owed to the Thorpe Parties under this Settlement Agreement; and FURTHER PROVIDED that the Thorpe Parties do not release the claims against the Sancheses that are expressly reserved in Paragraph B.3, below.

3. Reservation of Claims Relating to Alleged Dog Bite Incident. Notwithstanding any other provision of this Settlement Agreement to the contrary, the Parties acknowledge and agree that the Sancheses' release of the Thorpe Parties as set forth in Paragraph B.1, above, and the Thorpe Parties' release of the Sancheses as set forth in Paragraph B.2 above, excludes the Sancheses' and the Thorpe Parties' respective claims against one another that arise from, are related to, or connected with the alleged dog bite incident that occurred on or about February 26, 2019. Both the Sancheses and the Thorpe Parties expressly reserve, and do not waive, any claims that they may have against one another that arise from, are related to, or connected with the alleged dog bite incident, including but not limited to, claims for personal injuries, intentional infliction of emotional distress, and abuse of process arising from the pursuit and/or prosecution of such claims, and they agree that they may pursue such claims without limitation, including through filing a separate lawsuit, a counterclaim, and/or cross claim.

C. Miscellaneous

1. Entire Agreement. This Settlement Agreement, together with its exhibits and all expressly incorporated documents, contains or expressly incorporates by reference the entire agreement of the Parties with respect to the matters contemplated herein, and supersedes all prior negotiations, stipulations and agreements.

2. No Admission of Liability. Nothing in this Agreement will be construed as an admission of any liability or any wrongdoing by any Party to this Settlement Agreement.

3. Successors and Assigns. This Settlement Agreement shall inure to the benefit of each of the Parties, and shall be binding on the Parties and their respective successors and assigns.

4. Independent Legal Advice. Each Party to this Settlement Agreement represents, warrants and certifies that it has secured independent legal advice and

consultation, and/or has been given the opportunity to secure independent legal advice and consultation, in connection with this Settlement Agreement and any rights it may be relinquishing, and that it has not relied upon any representation or statements by the other Party, or its, his, or their agents or attorneys in executing this Settlement Agreement other than those which are expressly made herein.

5. Interpretation of Settlement Agreement. Any ambiguities or uncertainties herein, shall be equally and fairly interpreted for the benefit of and against each Party hereto, and shall further be construed and/or interpreted without reference to the identity of any Party preparing this document, it being expressly understood and agreed that each Party participated equally in the negotiation and preparation of this Settlement Agreement and have had an equal opportunity to do so.

6. Confidentiality. Commencing from and after the Effective Date, the Parties represent and agree that they will keep the terms and provisions of this Settlement Agreement, any payments made, or to be made, hereunder, and the matters and events relating thereto confidential and that they will not voluntarily disclose any information concerning the terms of this Agreement to anyone, except, so long as they agree to keep the information confidential and not to disclose it to others, their legal counsel, accountants, and similar professional service providers who need to know the contents of this Settlement Agreement in order to provide services to the Parties. Notwithstanding the foregoing, otherwise confidential information may be disclosed in connection with any relevant legal or administrative proceeding, including, but not limited to, litigation over the interpretation or enforcement of this Settlement Agreement, if a Party is required to disclose this Settlement Agreement or the contents thereof by law, rule, or regulation, including valid legal process or court order, or in order to assert any claim or defense as part of any governmental, legal, and/or administrative proceeding. No Party shall issue a press release regarding this Settlement Agreement or its terms, or make any public statements about this Settlement Agreement or its terms, other than that the Parties have reached a settlement, the terms of which are confidential, and the Parties shall not otherwise characterize this Settlement Agreement in any non-confidential statement to any person or entity to which the terms of this Settlement Agreement cannot be disclosed. However, nothing in this paragraph shall prohibit the Parties from disclosing the Boundary Line or the Withers Survey to any other person, or from representing that the Parties reached a mutual agreement regarding the location of the Boundary Line.

7. No Assignment of Claims. The Parties individually represent and warrant that they have not assigned or otherwise transferred any of their claims subject to this Settlement Agreement or their interests in any real or personal property being transferred or conveyed pursuant to this Settlement Agreement.

8. Severability. The provisions of this Settlement Agreement are severable, and if any provision of this Settlement Agreement is found for any reason to be invalid or unenforceable, in whole or in part, then such provision shall be deemed to be deleted only to the extent that it is found to be invalid or unenforceable. Such an invalid or

unenforceable provision shall not affect the validity of the remainder of this Settlement Agreement, which shall continue in full force and effect.

9. Waiver. The failure to enforce any of the terms and provisions contained herein shall in no event be deemed to be a waiver of the right to thereafter strictly enforce the terms and provisions hereof. Any waiver by any Party of any breach of any kind or character whatsoever by any other Party of the Settlement Agreement, whether such waiver be direct or implied, shall not be construed as a continuing waiver of, or consent to, any subsequent breach of this Settlement Agreement on the part of the other Party.

10. Modification. This Settlement Agreement may not be modified except by an instrument in writing and signed by all the Parties hereto.

11. Cooperation. Each Party agrees to execute and deliver such additional documents and instruments and to perform such additional acts as any Party may reasonably request or as may be reasonably necessary or appropriate to effectuate, consummate, or perform any of the terms, provisions, or conditions of this Settlement Agreement.

12. Equitable Remedies. The Parties confirm that damages at law may be an inadequate remedy for a breach or threatened breach of this Settlement Agreement. The Parties agree that, in the event of a breach or threatened breach of any provision of this Settlement Agreement, their respective rights and obligations hereunder shall be enforceable by specific performance, injunction (without the necessity to post a bond), or other equitable remedy to prevent or cure breaches of the provisions of this Settlement Agreement and to enforce specifically the terms and provisions hereof. All rights and remedies provided under this Settlement Agreement are cumulative and may be pursued singularly, in any combination, and in any order. It is the intention of the Parties hereto that their respective rights and obligations hereunder shall be enforceable in equity as well as at law or otherwise.

13. Attorneys' Fees and Costs. In any action of any kind relating to the enforcement or interpretation of this Settlement Agreement, the prevailing Party shall be entitled to collect all of its reasonable attorneys' fees and costs from the non-prevailing Party.

14. Applicable Law; Jurisdiction. This Settlement Agreement shall be governed by and construed and interpreted in accordance with the laws (excluding the choice of laws rules) of the State of Utah, and any action arising out of or relating to this Settlement Agreement shall be brought and maintained in Utah County, State of Utah.

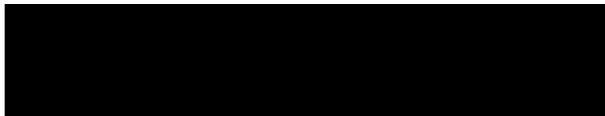
15. Counterparts; Facsimile Signatures. This Settlement Agreement may be executed in one or more counterparts, each of which shall be an original, with the same effect as if the signatures thereto and hereto were upon the same instrument. Any Party's facsimile signature and any emailed copy of a Party's scanned signature to this Settlement Agreement will be deemed a binding signature of this Settlement Agreement by such Party.

16. Titles and Headings. Titles and headings of the paragraphs and sections of this Settlement Agreement are for convenience of reference only and shall not affect the construction of any provision of this Settlement Agreement.

17. Authorization. Each individual executing this Settlement Agreement represents and warrants that such individual has been duly authorized to execute and deliver this Settlement Agreement in the capacity and for the entity set forth where such individual signs.

The Parties have executed this Settlement Agreement to be effective as of the Effective Date first set forth above.

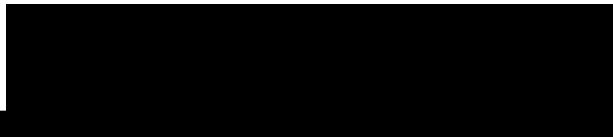
EDWARD SANCHES



Dated:

5/12/2020

MARIA SANCHES



Dated:

5/12/2020

CHRISTOPHER T. THORPE



Dated:



JANENE H. THORPE



Dated:



SHEILA SCHROEDTER



Dated:



15. Counterparts; Facsimile Signatures. This Settlement Agreement may be executed in one or more counterparts, each of which shall be an original, with the same effect as if the signatures thereto and hereto were upon the same instrument. Any Party's facsimile signature and any emailed copy of a Party's scanned signature to this Settlement Agreement will be deemed a binding signature of this Settlement Agreement by such Party.

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EDWARD SANCHES

MARIA SANCHES

Dated:

Dated:

CHRISTOPHER T. THORPE

JANENE H. THORPE

Dated:

5/8/20

Dated:

5-8-20

SHEILA SCHROEDTER

Dated:

5/11/20